

Remuneration and Facilities of President and Vice-President Act, 2017

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Amending Acts

1. Some Nepal Acts Amendment Act, 2075 2075.11.19

Act Number 22 of the year 2074

An Act Made to Provide for the Remuneration and Facilities of the President and Vice-President

Preamble: Whereas it is desirable to provide for the remuneration and facilities of the President and Vice-President,

The Legislature-Parliament, pursuant to Sub-article (1) of Article 296 of the Constitution of Nepal, has enacted this Act. 1. Short Title and Commencement: (1) This Act may be cited as the "Remuneration and Facilities of the President and Vice-President Act, 2074".

(2) This Act shall come into force immediately. 2. Remuneration: (1) The President and Vice-President shall be paid monthly remuneration as specified in Schedule-1.

(2) If the President or Vice-President retires from office in any circumstance other than the situation as per Sub-article (1) of Article 101 of the Constitution, an amount equal to one month's remuneration shall be provided to him/her as an additional facility. 3. Residential Facility: (1) The Government of Nepal shall arrange a government house for the residence of the President and Vice-President.

(2) The repair and maintenance of the house pursuant to Sub-section (1) shall be carried out by the Government of Nepal.

(3) The Government of Nepal shall arrange suitable furniture for the house pursuant to Sub-section (1). 4. Vehicle and Fuel Facility: (1) The Government of Nepal shall provide a vehicle for the President and Vice-President.

(2) The Government of Nepal shall arrange for the fuel, lubricant, and repair and maintenance required for the vehicle provided pursuant to Sub-section (1). 5. Communication Facility: The Government of Nepal shall arrange communication facilities such as telephone, computer, internet, fax, and newspapers for the residence of the President and Vice-President. 6. Attire Facility: The President and Vice-President shall be provided annually with an amount as specified in Schedule-1 as an attire allowance. 7. Hospitality and Contingency Expenses: (1) The President and Vice-President shall be provided monthly with an amount equal to the monthly remuneration as hospitality and contingency expenses.

(2) Bills and vouchers for the expenses pursuant to Sub-section (1) need not be submitted. 8. Facility Regarding Private Physician: The Government of Nepal shall arrange one private physician each for the President and Vice-President. 9.

Medical Treatment Expenses: (1) The Government of Nepal shall bear the medical treatment expenses incurred when the President or Vice-President is hospitalized and undergoes treatment within the country or, if treatment is not possible in Nepal and upon the recommendation of a medical board, goes abroad for treatment. (2) If an attendant is required when the President or Vice-President is hospitalized and undergoing treatment, the Government of Nepal shall provide reasonable expenses for up to three attendants as attendant expenses. (3) The Office of the Prime Minister and Council of Ministers shall pay the amount for medical treatment expenses pursuant to Sub-section (1) to the hospital where the President or Vice-President is admitted. 10. Festival Expenses: (1) The President and Vice-President shall receive an amount equal to one month's remuneration drawn by them as festival expenses each year for the festivals celebrated according to their religion, culture, and tradition. (2) The President and Vice-President may receive the amount pursuant to Sub-section (1) once in a fiscal year. 11. Daily Allowance and Travel Expenses: (1) The Government of Nepal shall bear all expenses when the President or Vice-President travels within the country or abroad in the course of official work related to his/her office. (2) The President or Vice-President shall receive daily allowance as specified in Schedule-2 while traveling within the country or abroad. 12. Insurance Facility: The President and Vice-President shall receive insurance facility as specified in Schedule-2 while traveling within the country or abroad in the course of official work. 13. Provision Regarding Experts: (1) The President and Vice-President may appoint a maximum of seven and five experts respectively to assist in their official work. (2) The monthly remuneration and facilities to be received by the experts appointed pursuant to Sub-section (1) shall be as determined by the Government of Nepal by publishing a notice in the Nepal Gazette. (3) The experts appointed by the President and Vice-President at the time of commencement of this Act shall be deemed to have been appointed under this Act. 14.

Provision Regarding Private Secretariat: (1) The Private Secretariat of the President and Vice-President shall consist of employees as per Schedule-3. (2) Employees working in the Private Secretariat pursuant to Sub-section (1) shall receive remuneration and facilities as determined by the Government of Nepal. (3) The employees appointed and working in the Private Secretariat of the President and Vice-President at the time of commencement of this Act shall be deemed to have been appointed under this Act. (4) The Government of Nepal shall arrange for the furniture and other physical resources and means required for the Private Secretariat of the President and Vice-President. 15. Oath: Before assuming their respective offices, the President shall take an oath of office and secrecy before the Chief Justice, and the Vice-President shall take such an oath before the President, in the format as per Schedule-4. 16. Immunity from Legal Proceedings: No legal proceedings shall be instituted in any court against the President or Vice-President during their term of office or after retirement regarding any acts performed in their official capacity. 17. Contact with Government of Nepal: The Office of the President and Vice-President shall maintain contact with the Government of Nepal through the Office of the Prime Minister and Council of Ministers. 18. Amendment to Schedule: The Government of Nepal may make necessary amendments to the Schedule by publishing a notice in the Nepal Gazette. Schedule-1 (Relating to Sub-section (1) of Section 2 and Section 6) Remuneration and Attire Facility for the President and Vice-President S.No. Subject For President For Vice-President 1. Remuneration Per month Rs. 1,50,450.- Per month Rs. 1,08,030.- 2. Attire Facility Per year Rs. 25,000.- Per year Rs. 20,000.- Schedule-2 (Relating to Sub-section (2) of Section 11 and Section 12) Daily Allowance and Insurance for the President and Vice-President S.No. Description Amount 1. Daily allowance rate for travel within the country Rs. 3,300.- 2. Daily allowance rate for travel abroad US \$ 250.- 3.

Insurance Rs. 25,00,000.- Note: 1. An additional thirty-three percent of the specified rate shall be provided for travel to European countries, Australia, New Zealand, America, Canada, Kuwait, Korea, Japan, Hong Kong, Russia, Qatar, Zambia, U.A.E., Singapore, Lebanon, Bahrain.

Schedule-3 (Relating to Sub-section (1) of Section 14) Employees of the Private Secretariat of the President and Vice-President

Employee Position	Description	President	Vice-President
(a) Chief Private Secretary (Equivalent to Special Class of Nepal Service)	1	1	
(b) Private Press Secretary (Equivalent to Special Class of Nepal Service)	1		1
(c) Joint Private Secretary (Equivalent to First Class of Nepal Service)	3	1	
(d) Private Press Coordinator (Equivalent to First Class of Nepal Service)	1		
(e) Deputy Private Secretary (Equivalent to Second Class of Nepal Service)	2	1	
(f) Private Officer (Equivalent to Third Class of Nepal Service)	6	2	
(g) Staff Nurse (Equivalent to Health Service Fifth Level)	2		1
(h) Computer Assistant (Equivalent to Non-gazetted First Class of Nepal Service)	2	1	
(i) Photographer (Equivalent to Non-gazetted First Class of Nepal Service)	1		1
(j) Telephone Operator (Equivalent to Non-gazetted First Class of Nepal Service)	2		1
(k) Telephone Operator (Equivalent to Non-gazetted Second Class of Nepal Service)	1		
(l) Driver (Non-classified)	4	3	
(m) Office Assistant	7	3	

Schedule-4 (Relating to Section 15) Amended by Some Nepal Acts Amendment Act, 2075.

Format for Taking Oath I, , do solemnly affirm / take an oath in the name of God that, remaining completely loyal to the country and the people, and with truth and integrity, remaining fully faithful to the Constitution of Nepal, wherein the state authority and sovereignty of Nepal are vested in the Nepali people, I will perform the duties of the office of under the existing law, with the welfare of the country and the people in mind, without fear of anyone, without bias, without prejudice or ill will, with honesty, and that I shall not, during my tenure in office or afterwards, in any manner whatsoever, reveal or divulge, except in the course of complying with the law, any matters that come to my knowledge in the course of performing my duties and which are required to be kept confidential under the existing law.

Date: Name: Signature: